

Judge Richard Oberholzer

DEPT C15

Department C15 hears Law and Motion matters on Mondays at 1:45 pm

Court Reporters: Official court reporters (i.e. court reporters employed by the Court) are NOT typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 10:00 am in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the

prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

APPEARANCES: Department C15 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") also available at <https://www.occourts.org/media-relations/aci.html> will be strictly enforced. Parties preferring to appear in-person for law and motion hearings may do so by providing notice of in-person appearance to the court and all other parties five (5) days in advance of the hearing. (see Appearance Procedures, section 3(c)1.)

PUBLIC ACCESS: In those instances where proceedings will be conducted only by remote video and/or audio, access will be provided to interested parties by contacting the courtroom clerk, preferably 24 hours in advance. No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

TENTATIVE RULINGS

Date: June 1, 2026

#	Case Name	Tentative
1	All Inclusive Insurance Services, LLC vs. EOS Organization, LLC 2023-01310746	Motion for Summary Judgment and/or Adjudication Plaintiffs All Inclusive Insurance Services, LLC and Isidro Miramontes move for summary adjudication against Defendants EOS Organization, LLC and Aaron Green <u><i>Issue 1: Breach of Written Contract (Promissory Note) against EOS Organization, LLC:</i></u> “To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) plaintiff’s performance of the contract or excuse for nonperformance, (3) defendant’s breach, and (4) resulting damage to the plaintiff.” (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.) The first cause of action for breach of written contract is alleged by plaintiff All Inclusive Insurance Services, LLC (“All Inclusive”) against defendant EOS Organization, LLC (“EOS”). As to the existence of a contract, Plaintiffs have submitted a Promissory Note (“Note”) dated December 27, 2022 between All Inclusive and EOS, pursuant to which All Inclusive agreed to loan EOS the principal sum of \$200,000 and EOS agreed to the repayment of \$260,800 if repaid by January 23, 2023, and \$364,800 if not repaid by January 23, 2023 and repaid by February 20, 2023. (Harrison Decl., ¶ 3, Ex. 1.) However, the Note is not signed by EOS. (Harrison Decl., ¶ 3, Ex. 1.) The absence of signatures does not render a contract unenforceable. (Vita Plan. & Landscape Architecture, Inc. v. HKS Architects, Inc. (2015) 240 Cal.App.4th 763, 773.) “A voluntary acceptance of the benefit of a transaction is equivalent to a consent

to all the obligations arising from it, so far as the facts are known, or ought to be known, to the person accepting.” (Civ. Code, § 1589; see also Civ. Code, § 1584 [“acceptance of the consideration offered with a proposal, is an acceptance of the proposal”].)

Although the Note is not signed by EOS, Defendants have submitted Defendants’ contemporaneous writings which show the parties conducted themselves as though they had an agreement. Specifically, on December 23, 2022, EOS’s Chief Solutions Officer, Alex Green, emailed that the “\$260,800 payback” was due “by January 23rd,” and that “[i]f not paid back within 60 days... (February 20th) then the amount due... is \$364,800,” covered by the personal guaranty. (Harrison Decl. ¶ 7, Ex. 4.) Further, in discovery, Defendants admitted receipt of the \$200,000 loan. (Harrison Decl. ¶ 12, Ex. 7, RFA No. 1.) Additionally, on February 23, 2023, Aaron J. Green acknowledged in writing that Defendants had “missed the date,” that the loan was “past due,” and offered a partial payment of \$50,000. (Plaintiffs’ Undisputed Material Facts (“UMF”) 8.) Based on these writings, Plaintiffs have shown the existence of a contract.

As to performance of the contract, Plaintiffs have shown that on December 27, 2022, All Inclusive funded \$200,000 to EOS’s designated account by wire transfer. (UMF 3.)

As to breach, Plaintiffs have shown EOS defaulted on the loan. On February 21, 2023, Plaintiffs provided written notice of default and demanded payment from EOS and Aaron J. Green. (UMF 7.) On February 23, 2023, Green acknowledged in writing that Defendants had “missed the date,” that the loan was “past due,” and offered a partial payment of \$50,000. (UMF 8.) Plaintiffs did not accept the proposed partial payment as resolution of the default, and the default was not cured. (UMF 9.) The loan remains unpaid.

As to damages, Plaintiffs have shown they have been damaged because the loan remains unpaid. (UMF 11.)

All Inclusive has therefore met its initial burden to produce admissible evidence on each element of the breach of contract cause of action. The burden shifts to EOS to show that a triable issue of material fact exists. EOS has not opposed the Motion and not met its shifted burden.

Tentative Ruling: Plaintiff's summary adjudication of the first cause of action is GRANTED.

Issue 2: Breach of Oral Contract (Promissory Note) against EOS Organization, LLC:

"The elements of a breach of oral contract claim are the same as those for a breach of written contract: a contract; its performance or excuse for nonperformance; breach; and damages." (Stockton Mortg., Inc. v. Tope (2014) 233 Cal.App.4th 437, 453.)

The second cause of action for breach of oral contract is alleged by plaintiff All Inclusive against defendant EOS.

Here, Plaintiffs have not submitted any evidence of an oral contract.

Tentative Ruling: Plaintiff's motion for summary adjudication of the second cause of action is DENIED.

Issue 3: Breach of Guaranty against Aaron Green:

The elements to a claim for breach of guaranty are: (1) a guarantor guaranteed payment of indebtedness of a primary obligor, (2) the primary obligor defaulted, (3) notification was given to the guarantor as to the primary obligor's default, (4) there was nonpayment of the debt by the guarantor, and (5) damages. (Torrey Pines Bank v. Superior Court (1989) 216 Cal.App.3d 813, 819.)

Plaintiffs have submitted evidence to show that on December 27, 2022, Aaron J. Green executed a Personal Guaranty guaranteeing payment of "all sums due and owing under" the Promissory Note. (UMF 17-19.) The Promissory Note was not repaid by February 20, 2023, and Plaintiffs thereafter made demand for payment. (UMF 20.) On February 21, 2023, Plaintiffs provided written notice of default and demanded payment from Green under the Guaranty. (UMF 21.) Green failed to pay any sums due under the Guaranty, and the default was not cured. (UMF 24.) As a result, Plaintiffs have been damaged because the loan remains unpaid.

Plaintiffs have therefore met their initial burden to produce admissible evidence on each element of the breach of guaranty cause of action. The burden shifts to Green to show that a triable

issue of material fact exists. Green has not opposed the Motion and not met his shifted burden.

Tentative Ruling: Plaintiff's motion for summary adjudication of the third cause of action is GRANTED.

Issue 4: Damages sought on the Above Claims (\$364,800 or, in the Alternative, not Less Than \$200,000 Principal Plus Prejudgment Interest):

Defendants have asserted usury as an affirmative defense.

It is not plaintiff's initial burden to disprove affirmative defenses and cross-complaints asserted by defendant. (Consumer Cause, Inc. v. SmileCare (2001) 91 Cal.App.4th 454, 468; Oldcastle Precast, Inc. v. Lumbermens Mut. Cas. Co. (2009) 170 Cal.App.4th 554, 565.)

Here, Defendants have not opposed the Motion, however, the \$364,800 due if not repaid by January 23, 2023, on a loan of \$200,000 funded on December 27, 2022, is clearly usurious.

Regardless of the usurious nature of the loan, here Plaintiffs have not sufficiently shown Defendants agreed to pay \$364,800 by January 23, 2023. The only evidence other than the unsigned Note submitted in support of the claim for \$364,800 is an email dated December 23, 2022, where EOS's Chief Solutions Officer,

Alex Green, emailed that the "\$260,800 payback" was due "by January 23rd," and that "[i]f not paid back within 60 days... (February 20th) then the amount due... is \$364,800," covered by the personal guaranty. (Harrison Decl. ¶ 7, Ex. 4.) This email is dated several days before Plaintiffs contend the Note was signed therefore it does not sufficiently show Defendants agreed to repay this amount within 60 days. No other document submitted by Plaintiffs shows Defendants agreed to repay \$364,800.

Tentative Ruling: The Court GRANTS summary adjudication as to damages but limited to \$200,000 principal plus prejudgment interest.

Moving party to give notice.

2	Bank of America N.A. vs. Leitner 2024-01408601	Motion to Set Aside/Vacate Dismissal and Enter Judgment Plaintiff Bank of America, NA moves to Set Aside Dismissal and Enter Judgment Pursuant to the Settlement Agreement. There is no dismissal to set aside. Thus, Plaintiff's request to set aside dismissal is DENIED. Because there was no dismissal, the Court retained jurisdiction. The parties entered into a settlement on August 5, 2024. (RJN Ex. B.) Defendant agreed to make payments of approximately \$1,500 every month. . (RJN Ex. B, ¶ 4.) Plaintiff ceased making monthly payments in August 2025 and has failed to repay the remaining \$21,372.07 due under the settlement agreement. (Sherrill Decl., ¶¶ 4, 7.) Tentative Ruling: Plaintiff's request to enter judgment pursuant to the terms of the Settlement Agreement is GRANTED. Plaintiff to give notice
3	Bear Capital Partners, Inc. vs. Smith 2025-01508678	1. Demurrer to Cross-Complaint 2. Case Management Conference Cross-Complainants attempted to file an amended cross-complaint on May 18, 2026, which was rejected for an error in the caption. The Court finds a short continuance to allow Cross-Complainants to file the amended cross-complaint would serve the interests of justice and conserve judicial resources by potentially eliminating many of the numerous grounds for demurrer asserted. Tentative Ruling: Plaintiffs/Cross-Defendants Bear Capital Partners, Inc. and Ronald L. Meer's Demurrer is CONTINUED to 07/27/26 at 1:45 pm in Department C15. Defendants/Cross-Complainants may file an amended cross-complaint no later than nine (9) court days prior to the continued hearing date. No further opposition is permitted. Case Management Conference is continued to 07/27/26 at 1:45 pm in Department C15. Defendants/Cross-complainants to give notice.

4	Camargo vs. Advanced Auto Refinishing Inc. 2026-01538636	Demurrer to Complaint <i>First Amended Complaint filed 5/6/2026</i> Off Calendar
5	Chung vs. Le 2025-01483307	Motion for Leave to Amend Code of Civil Procedure section 473(a)(1) states, “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” “There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding.” (Sullivan v. City of Sacramento (1987) 190 Cal.App.3d 1070, 1081.) Here, Defendants seek leave to amend their answer to allege new defenses related to their assertion that the parties reached an enforceable settlement, but Plaintiff sought to impose new material terms and refused to proceed with the settlement. The motion is unopposed. There is a strong policy favoring amendment. Tentative Ruling: The Motion for Leave to Amend Answer by Defendants Trinh Le and Dao Le is GRANTED. Defendants shall file and serve their amended answer within ten days.

6	Gary, M.D., vs. Intefusion, LLC 2025-01507916	1. Demurrer to Complaint 2. Motion to Strike Portions of Complaint 3. Case Management Conference Demurrer Defendants InteFusion, LLC; Julie Bolter; and Brad Bolter’s Demur to the Complaint. <i>3rd and 4th Causes of Action – Intentional and Negligent Misrepresentation</i> “ ‘The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.’ ” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) “In California, fraud must be pled specifically; general and conclusory allegations do not suffice. Thus, the policy of liberal construction of the pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect. This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (Lazar, supra, 12 Cal.4th 631, 645 (cleaned up).) Plaintiffs have alleged the intentional and negligent misrepresentations claims with sufficient specificity. Plaintiffs allege: “In or about May 2017, Julie, on behalf of herself as an individual and on behalf of InteFusion, knowingly misrepresented to Plaintiffs that they were billing experts in Medicare, TRICARE, and other insurance providers, especially for billing integrative medical services and infusion claims. Julie told Plaintiffs that she and InteFusion could properly bill the services provided by JJGMD in a more efficient and effective way and estimated that it could increase Plaintiffs’ billing revenue by approximately 15%.” (Compl., ¶ 35.) Additionally, Defendants’ representation about Defendants’ expertise in billing services is an existing fact and not future conduct.
---	---	---

	Tentative Ruling: Defendants’ demurrer to the 3rd and 4th causes of action is overruled. <i>6th Cause of Action – Unfair Competition</i> “The scope of section 17200 is broad, encompassing anything that can properly be called a business practice and that at the same time is forbidden by law.” (Linear Technology Corp. v. Applied Materials, Inc. (2007) 152 Cal.App.4th 115, 133 (cleaned up).) “As a result, to state a claim under the [UCL] one need not plead and prove the elements of a tort. Instead, one need only show that ‘members of the public are likely to be deceived.’” (Ibid.) “Actions under the UCL are not meant to be substitutes for tort or contract actions. [Citation.] ‘Instead, the act provides an equitable means through which both public prosecutors and private individuals can bring suit to prevent unfair business practices and restore money or property to victims of these practices.’” (Marsh v. Anesthesia Services Medical Group, Inc. (2011) 200 Cal.App.4th 480, 502.) Plaintiffs have failed to allege members of the public would be deceived. Tentative Ruling: Defendants’ demurrer to the 6th cause of action is sustained with 10 days leave to amend. (See City of Stockton v. Superior Court (2007) 42 Cal.4th 730, 747.) Motion to Strike Defendants InteFusion, LLC; Julie Bolter; and Brad Bolter’s move to Strike Portions of the Complaint. Defendants seek to strike the 3rd, 4th, and 6th causes of action and numerous paragraphs of the Complaint on the grounds Plaintiffs have failed to adequately allege facts to support a claim for punitive damages. “In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civil Code, section 3294(a).) “In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (Clauson v.
--	--

		Superior Court (1998) 67 Cal.App.4th 1253, 1255.) Additionally, “[i]n passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (Ibid.) As discussed in this Court’s ruling on Defendants’ demurrer, Plaintiffs have adequately alleged its fraud claims. Thus, Plaintiff has adequately alleged a basis under Section 3294(a) to claim punitive damages. Tentative Ruling: Defendants InteFusion, LLC; Julie Bolter; and Brad Bolter’s Motion to Strike Portions of the Complaint is DENIED. Defendants to give notice.
7	Gomez vs. BGN Acquisitions La Habra Hills 2026-01539087	1. Motion to Strike - Anti SLAPP 2. Motion to Strike - Anti SLAPP Motion 1: Anti-SLAPP by Kimball, Tirey & St. John, LLP (ROA 16) Defendant Kimball, Tirey & St. John, LLP’s (“KTS”) Special Motion to Strike the Complaint under the Anti-SLAPP Statute Each parties’ respective request for judicial notice is GRANTED. (Evid. Code, §452, subd. (d).) <u><i>Legal Standard</i></u> A special motion to strike is authorized against SLAPP suits (Strategic Litigation Against Public Participation), i.e., lawsuits brought “primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for the redress of grievances.” (Code Civ. Proc., § 425.16, subd. (a).) An anti-SLAPP motion may be used to strike allegations of protected activity, even if the motion does not defeat the entire cause of action. (Baral v. Schnitt (2016) 1 Cal.5th 375, 385-390; disapproving Mann v. Quality Old Time Service, Inc. (2004) 120 Cal.App.4th 90 and its progeny). The anti-SLAPP statute is to be construed broadly. (Code Civ. Proc., § 425.16, subd. (a).) To prevail on the motion, the plaintiff’s claim must (1) arise out of the defendant’s protected speech or petitioning; and (2) lack even minimal merit. (Navellier v. Sletten (2002) 29 Cal.4th 82, 88-89.) Thus, in ruling on an anti-SLAPP motion, courts engages in a two-step process: “First, the defendant must establish that the

		challenged claim arises from activity protected by section 425.16. [Citation.] [Second,] [i]f the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success.” (Baral, supra, 1 Cal.5th at p. 384.) <u><i>First Prong – Protected Activity</i></u> KTS moves to strike each cause of action on the grounds that the activity alleged against it arises from statements and filings made in connection with a judicial proceeding (the unlawful detainer action). (See Code Civ. Proc., § 425.16, subd. (e)(2).) Plaintiffs do not dispute that the UD filing and related litigation activities constitute protected activity. (Opp. p. 2:21-23.) Accordingly, the sole question is whether Plaintiffs can establish a probability of prevailing on the merits of their claims against KTS. <u><i>Second Prong – Probability of Success</i></u> To establish probability of prevailing on the merits, a plaintiff must “state and substantiate a legally sufficient claim ...Put another way, the plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.” (Monster Energy Co. v. Schechter (2019) 7 Cal.5th 781, 791. [cleaned up].) “[A] plaintiff's burden at the second anti-SLAPP step is a low one, requiring only a showing that a cause of action has at least minimal merit within the meaning of the anti-SLAPP statute.” (Id., at p. 793.) The court does not “weigh credibility [nor]compare the weight of the evidence. Rather, [the court] accept[s] as true the evidence favorable to the plaintiff and evaluate[s] the defendant's evidence only to determine if it has defeated that submitted by the plaintiff as a matter of law.” (Id. at pp. 791-792.) <u><i>1st Cause of Action - Malicious Prosecution</i></u> Malicious Prosecution consists of three elements. “The underlying action must have been: (i) initiated or maintained by, or at the direction of, the defendant, and pursued to a legal termination in favor of the malicious prosecution plaintiff; (ii) initiated or maintained without probable cause; and (iii) initiated or maintained with malice.” (Parrish v. Latham & Watkins (2017) 3 Cal.5th 767, 775.)
--	--	--

		KTS contends Plaintiffs cannot satisfy the second and third elements. KTS is correct. Probable cause requires an objective inquiry: whether, on the facts known to the defendant, “whether, on the basis of the facts known to the defendant, the institution of the prior action was legally tenable . . . A claim is unsupported by probable cause only if any reasonable attorney would agree [that it is] totally and completely without merit.” (Parrish v. Latham & Watkins (2017) 3 Cal.5th 767, 776 [cleaned up].) In addition, “probable cause (or its absence) must be viewed at more than one moment in the life of the prior litigation. Even if the malicious prosecution defendant had probable cause to initiate the suit under a particular theory, his or her decision to continue to prosecute the case on that theory after learning it was not supported by probable cause may result in liability for malicious prosecution. (Maleti v. Wickers (2022) 82 Cal.App.5th 181, 219, citing Zamos v. Stroud (2004) 32 Cal.4th 958, 971 [emphasis in original].) Here, Plaintiffs have failed to establish KTS initiated or maintained the UD Action without probable cause. Regarding initiating the UD Action, Plaintiffs contend BGN demanded \$13,725 for April through August 2025, the precise period covered by the written rent credit agreement with its own property manager, Monica Ronchetti. (See Gomez Decl. at ¶¶ 5-6, Exhibits 1-2.) BGN demanded the full Unit L104 rate for months when Plaintiffs were not occupying that unit but a smaller unit. Plaintiffs further contend that BGN rejected Plaintiffs' cashier's check for August 2025 rent, when they returned to Unit L104, six days before filing the UD Action on August 13, 2025, and BGN's manager confirmed she was “instructed not to accept payment.” (See Garcia Decl. at ¶ 10, Exhibit D [JSS, p. 3:7-8].) These allegations and evidence, however, do not concern KTS. Plaintiffs’ opposition seems to conflate the actions of BGN and KTS. Plaintiffs do not provide evidence that KTS was involved in this conduct other than actually filing the UD Action. The only argument addressing KTS in the probable cause section of the opposition is Plaintiffs’ argument that KTS continued prosecuting the UD Action after discovering facts showing the case lacked probable cause. Namely, Plaintiffs contend that during discovery KTS received emails between Plaintiff Gomez and Ronchetti, BGN’s property manager, establishing any rent obligation was waived but rent nevertheless was demanded for a period when they did not occupy Unit L104. These emails show that
--	--	--

		when Plaintiffs were displaced from Unit L104 for mold remediation, Ronchetti confirmed that “if you choose to stay away during repairs the daily rate you would get rent credit would be \$91.50 . . .” and “they will be credited for the number of days you have been out of your apartment, starting from the day the issue was 1st reported.” (See Gomez Decl. at ¶¶ 5-6, Exhibits1-2.) The Ronchetti emails do not establish maintenance of the UD Action lacked probable cause. While the emails establish BGN agreed to credit rent while Plaintiffs were out of the unit during repairs, the UD Action was maintained due to a dispute as to when the unit was ready for occupancy. In other words, neither of the parties disputed whether rent would be charged, but rather when Plaintiffs were obligated to resume rent payments. Emails stating no rent would be charged during repairs are not relevant to either issue. On the one hand, there is evidence that KTS advised Plaintiffs’ counsel in April 2025 that the unit was ready. (Greer Decl. ¶ 5, KTS 088; see also Garcia Decl. at ¶ 10, Exhibit D [JSS, p. 2:24-3:2].) There is also evidence that BGN conducted two mold clearance tests in or about December 2024 and June 2025 by two different vendors and both came back negative. (Greer Decl. at KTS 072-087; see also Garcia Decl. at ¶ 10, Exhibit D [JSS, p. 2:5-14].) On the other hand, Plaintiffs claim no rent was due until August because they believed repairs were not completed and the unit was not ready until August. (Greer Decl. at KTS 093 Gomez Decl. at ¶¶10-11, Exhibit 3.) There is also evidence that the two mold reports were not shared with Plaintiffs. (Garcia Decl. at ¶ 10, Exhibit D [JSS, p. 2:16-21].) This evidence establishes there was a genuine dispute as to when Plaintiffs were obligated to resume paying rent. A reasonable attorney would not agree that maintenance of the UD Action was “totally and completely without merit.” (See Parrish, <i>supra</i>, 3 Cal.5th at p. 776.) The fact that Plaintiffs ultimately prevailed after a jury trial does not retroactively render the UD Action untenable. “The ‘malice’ element . . . relates to the subjective intent or purpose with which the defendant acted in initiating the prior action. The motive of the defendant must have been something other than that of bringing a perceived guilty person to justice or the satisfaction in a civil action of some personal or financial purpose. The plaintiff must plead and prove actual ill will or some improper ulterior motive. It may range anywhere from open hostility to indifference.” (Downey Venture v. LMI Ins. Co. (1998) 66
--	--	--

	Cal.App.4th 478, 494 [emphasis in original] [cleaned up]; see, e.g., Bertero v. National General Corp., supra, (1974) 13 Cal.3d 43, 54 [attorney admitted filing suit because he “ ‘wanted to show the Appellate Court what a bastard Bertero was’”].) Plaintiffs seem to argue that because KTS continued to prosecute the action after it had the Ronchetti emails, KTS lacked probable cause and therefore imputes improper motive to KTS. As discussed above, KTS had probable cause for the action. Plaintiffs also argue that malice existed because KTS knew its client's general counsel had refused to settle the UD Action independently of the Mold Action but pressed forward to a jury trial anyway. This fact alone does not establish malice. A party's desire for a global settlement is not per se improper. Further, a party's refusal to settle has no bearing on the underlying merits of the case. In addition, KTS provided a declaration from Scott Andrews, the KTS attorney who handled the UD Action once it appeared imminent that a jury trial would proceed, who states he does not know Plaintiffs or their counsel personally and does not have any ill-will toward them. (Andrews Decl., ¶¶ 5-6.) Andrews also addresses the allegation that he stated during settlement negotiations “OK ... if they lose, they will be out before Christmas though . . . Something to consider.” Andrews made this statement in response to opposing counsel's email stating Plaintiffs did not want to vacate and were willing to pay from August to November. (Andrews Decl., ¶3.) Andrews explains that when he made the statement, he believed that if opposing counsel proposed a date after the holidays that Plaintiffs would be willing to vacate, that BGN would agree. (Andrews Decl., ¶ 4.) Andrews also explains his statement was implying that settlement would allow Plaintiffs to stay in the unit beyond the holidays if the parties reached a settlement. (Andrews Decl., ¶¶ 3-4.) Plaintiffs neither address the Andrews declaration nor provide evidence showing any KTS attorney had an improper motive at any point during the UD Action. Therefore, Plaintiffs have failed to establish minimal merit of their cause of action for malicious prosecution against KTS. <u>2nd Cause of Action - Abuse of Process</u>
--	--

	To prevail on an abuse of process claim, a plaintiff must show that the defendant (1) entertained an ulterior motive in using the process and (2) committed a willful act in a wrongful manner. (See <i>Coleman v. Gulf Ins. Group</i> (1986) 41 Cal.3d 782, 792.) “Abuse of process is not just another name for malicious prosecution. Simply filing or maintaining a lawsuit for an improper purpose (such as might support a malicious prosecution cause of action) is not abuse of process. Malicious prosecution and abuse of process are distinct. The former concerns a meritless lawsuit (and all the damage it inflicted). The latter concerns the misuse of the tools the law affords litigants once they are in a lawsuit (regardless of whether there was probable cause to commence that lawsuit in the first place). Hence, abuse of process claims typically arise for improper or excessive attachments [citation] or improper use of discovery.” (<i>S.A. v. Maiden</i> (2014) 229 Cal.App.4th 27, 41-42 [cleaned up].) Plaintiffs contend the ulterior motive is established by an email from BGN’s general counsel showing BGN used the UD Action to coerce dismissal of the Mold Action, not to recover rent. Plaintiffs further contend the willful acts include refusing Plaintiffs’ check for the August 2025 rent, serving the 3-day notice immediately thereafter, demanding rent at the wrong unit rate for a period covered by a written waiver, and conditioning any resolution on joint dismissal of both cases. This evidence is primarily directed at BGN, not KTS. Even if this evidence were properly directed at KTS, it does not create a separate claim for abuse of process because it does not show that KTS took any action that was not proper in the regular conduct of the UD Action. Therefore, Plaintiffs have failed to establish minimal merit of their cause of action for abuse of process against KTS. <u><i>3rd and 4th Causes of Action - Intentional Infliction of Emotional Distress and Negligent Infliction of Emotional Distress</i></u> KTS argues the emotional distress claims are barred by the litigation privilege. The litigation privilege under Civil Code, section 47, subdivision (b), immunizes “any communication” made in judicial proceedings (<i>Silberg v. Anderson</i> (1990) 50 Cal.3d 205, 212) as well as communications that have “some relation” to litigation. (<i>Rubin v. Green</i> (1993) 4 Cal.4th 1187, 1193.) It is “applicable to any communication, whether or not it amounts to a publication and all
--	--

	torts except malicious prosecution.” (Silberg, supra, 50 Cal.3d at p. 212 [cleaned up].) The litigation privilege “is relevant to the second step in the anti-SLAPP analysis in that it may present a substantive defense plaintiff must overcome to demonstrate a probability of prevailing.” (JSJ Limited Partnership v. Mehrban (2012) 205 Cal.App.4th 1512, 1522.) Here, Plaintiffs allege KTS initiated and prosecuted the UD Action and made a statement during settlement negotiations to opposing counsel that if Plaintiffs did not prevail in the UD Action, they would be evicted before Christmas. These activities are undisputably protected by the litigation privilege. (See Feldman v. 1100 Park Lane Assocs. (2008) 160 Cal.App.4th 1467, 1480 [prosecution of unlawful detainer action “indisputably is a protected activity within the meaning of § 425.16”]; Seltzer v. Barnes (2010) 182 Cal. App. 4th 953, 963-964 [settlement negotiations between opposing counsel are protected activity].) Plaintiffs contend the litigation privilege does not apply because their emotional distress claims arise from conduct, not communications. (See Kimmel v. Goland (1990) 51 Cal.3d 202, 211 [noting “distinction between injury allegedly arising from communicative acts, i.e., the attorney's testimony, and injury resulting from noncommunicative conduct, i.e., the invasion of privacy resulting from the attorney's eavesdropping”].) More specifically, Plaintiffs contend the following actions caused them emotional distress: Instructing an employee to refuse Plaintiffs’ rent payment; demanding rent at the full Unit L104 rate for months when Plaintiffs were displaced in a smaller unit, contradicted by BGN's own written agreement; and rejecting a settlement offer exceeding Defendants' own prior demand not because the money was insufficient but to maintain leverage over the unrelated Mold Action. Plaintiffs’ argument concerns BGN’s actions, not KTS’s actions. Even if these actions were attributable to KTS, Plaintiffs attempt to recast this litigation activity as “noncommunicative conduct” is unpersuasive. The gravamen of Plaintiffs’ claims remains initiation and prosecution of the UD Action and related settlement discussions. Courts have consistently held that claims arising from litigation activities, including settlement communications, are barred by the litigation privilege. (Seltzer, supra, 182 Cal.App.4th
--	--

	953; Dowling, supra, 85 Cal.App.4th 1404; Home Ins. Co. v. Zurich Ins. Co. (2002) 96 Cal.App.4th 17.) The litigation privilege therefore applies. Accordingly, Plaintiffs have failed to establish minimal merit of their emotional distress claims against KTS. Tentative Ruling: The motion of Defendant Kimball, Tirey & St. John, LLP's ("KTS") Special Motion to Strike the Complaint under the Anti-SLAPP Statute is GRANTED. Motion 2: Anti-SLAPP by BGN Acquisitions La Habra Hills LP (ROA 27) Defendant BGN Acquisitions La Habra Hills LP's ("BGN") Special Motion to Strike the Complaint under the Anti-SLAPP Statute. Each party's respective request for judicial notice is GRANTED. (Evid. Code, §452, subd. (d).) <u><i>First Prong – Protected Activity</i></u> BGN argues the activity alleged against it arises from the filing and prosecution of litigation, the service of legally required notices, and counsel-to-counsel settlement communications, which is protected activity. (See Code Civ. Proc., § 425.16, subd. (e) (2).) Plaintiffs do not dispute that the UD filing and related litigation activities constitute protected activity. (Opp. p. 6:13-16.) Accordingly, the sole question is whether Plaintiffs can establish a probability of prevailing on the merits of their claims against BGN. <u><i>Second Prong – Probability of Success</i></u> <u><i>1st Cause of Action - Malicious Prosecution</i></u> Malicious Prosecution consists of three elements. "The underlying action must have been: (i) initiated or maintained by, or at the direction of, the defendant, and pursued to a legal termination in favor of the malicious prosecution plaintiff; (ii) initiated or maintained without probable cause; and (iii) initiated or maintained with malice." (Parrish v. Latham & Watkins (2017) 3 Cal.5th 767, 775.) BGN contends Plaintiffs cannot satisfy the second and third elements. Plaintiffs contend BGN lacked probable cause to initiate the UD Action because BGN demanded \$13,725 for April through August
--	--

	2025, the precise period covered by the written rent credit agreement with its own property manager, Monica Ronchetti. (See Gomez Decl. at ¶¶ 5-6, Exhibits 1-2.) BGN demanded the full Unit L104 rate for months when Plaintiffs were not occupying that unit but a smaller unit. Plaintiffs further contend that BGN rejected Plaintiffs' cashier's check for August 2025 rent, when they returned to Unit L104, six days before filing the UD Action on August 13, 2025, and BGN's manager confirmed she was "instructed not to accept payment." (See Garcia Decl. at ¶ 10, Exhibit D [JSS, p. 3:7-8].) Plaintiffs also contend BGN lacked probable cause to maintain the UD Action because it pressed forward through a jury trial even though discovery revealed the Ronchetti emails establishing BGN agreed that any rent obligation was waived. The Ronchetti emails do not establish lack of probable cause. They merely established BGN agreed to credit rent while Plaintiffs were out of the unit during repairs. A genuine factual dispute existed regarding when the unit was ready for occupancy and when Plaintiffs became obligated to resume paying rent. The Ronchetti emails are not relevant to that dispute. In addition to the above stated evidence, there is evidence that Plaintiffs refused to return to Unit L104 despite two separate mold inspections conducted in or about December 2024 and June 2025 by different vendors finding that no elevated mold was present. (Beck Decl. ¶ 7, Ex. 2, BGN DOC PROD 51, 53-58, 72-73; Compl., ¶ 24.) BGN's position was that rent resumed once the unit was cleared and available. Plaintiffs disagreed and maintained the unit remained uninhabitable because the unit still smelled "musty." This was a factual dispute that was resolved by a jury. The fact that Plaintiffs ultimately prevailed does not retroactively render the UD Action untenable. Regarding malice, Plaintiffs argue BGN refused to settle the UD Action independently of the Mold Action. Plaintiffs also contend BGN refused their August 2025 rent before filing the UD Action to manufacture the appearance of non-payment as a pretext. A party's desire for a global settlement is not per se improper. California public policy strongly favors settlement over litigation in the interest of efficiency and economy for both the parties and the courts. (See Kaufman v. Goldman (2011)195 Cal. App. 4th 734, 745; Osumi v. Sutton (2007) 151 Cal. App. 4th 1355, 1359.)
--	---

	Plaintiffs concede global settlements are not unlawful but argues tying a rent-collection lawsuit to dismissal of an unrelated personal injury suit involving the same family’s children is unlawful. Plaintiffs fail to cite authority for this proposition. Further, the two actions are not unrelated as Plaintiffs contend. The two actions arose from the same factual nexus in that the mold issue is the reason the rent dispute existed. BGN provides a declaration from D. Michael Beck, who became BGN’s General Counsel on October 23, 2025. (Beck Decl. ¶ 1.) Beck states any communications attributed to him in the Complaint (i.e., the 11/2/25 email stating BGN was not interested in settling the matters individually) were made during settlement discussions solely for the purpose of exploring a global resolution of the parties’ pending litigation matters. (Beck Decl. ¶ 8.) Beck also states he does not have a personal relationship with Plaintiffs or their counsel; he does not harbor any animus toward them and is not aware of any facts or circumstances supporting any claims of animus towards Plaintiffs by any individual under his supervision at BGN. (Beck Decl., ¶ 9.) Plaintiffs attack Beck’s declaration arguing malice does not require personal animus but improper motive. Plaintiffs are only partially correct. Malice requires proof of “actual ill will or some improper ulterior motive.” (Downey Venture v. LMI Ins. Co. (1998) 66 Cal.App.4th 478, 494 [emphasis in original] [cleaned up].) Beck’s declaration addresses both. It denies animus and explains the purpose underlying the communications was to pursue global settlement of related disputes. Plaintiffs offer no evidence refuting Beck’s declaration. Therefore, Plaintiffs have failed to establish minimal merit of their cause of action for malicious prosecution against BGN. <u><i>2nd Cause of Action - Abuse of Process</i></u> To prevail on an abuse of process claim, a plaintiff must show that the defendant (1) entertained an ulterior motive in using the process and (2) committed a willful act in a wrongful manner. (See Coleman v. Gulf Ins. Group (1986) 41 Cal.3d 782, 792.) “Abuse of process is not just another name for malicious prosecution. Simply filing or maintaining a lawsuit for an improper purpose (such as might support a malicious prosecution cause of action) is not abuse of process. Malicious prosecution and abuse of process are distinct. The former concerns a meritless lawsuit (and
--	--

	all the damage it inflicted). The latter concerns the misuse of the tools the law affords litigants once they are in a lawsuit (regardless of whether there was probable cause to commence that lawsuit in the first place). Hence, abuse of process claims typically arise for improper or excessive attachments [citation] or improper use of discovery.” (S.A. v. Maiden (2014) 229 Cal.App.4th 27, 41-42 [cleaned up].) Plaintiffs contend Beck’s email shows BGN used the UD Action to coerce dismissal of the Mold Action, not to recover rent. Plaintiffs further contend the willful acts include refusing Plaintiffs’ check for the August 2025 rent, serving the 3-day notice immediately thereafter, demanding rent at the rate for the larger unit when Plaintiffs were occupying the smaller unit, demanding back-rent for a period expressly waived by the Ronchetti emails, and conditioning any resolution on joint dismissal of the Mold Action. This evidence does not create a separate claim for abuse of process because it does not show that BGN took any action that was not proper in the regular conduct of the UD Action. Plaintiffs identify no misuse of discovery, attachment, writ process, or any judicial mechanism outside the ordinary prosecution of the UD Action itself. Therefore, Plaintiffs have failed to establish minimal merit of their cause of action for abuse of process against BGN. <u><i>3rd and 4th Causes of Action - Intentional Infliction of Emotional Distress and Negligent Infliction of Emotional Distress</i></u> BGN argues the emotional distress claims are barred by the litigation privilege. The litigation privilege under Civil Code, section 47, subdivision (b), immunizes “any communication” made in judicial proceedings (Silberg v. Anderson (1990) 50 Cal.3d 205, 212) as well as communications that have “some relation” to litigation. (Rubin v. Green (1993) 4 Cal.4th 1187, 1193.) It is “applicable to any communication, whether or not it amounts to a publication and all torts except malicious prosecution.” (Silberg, supra, 50 Cal.3d at p. 212 [cleaned up].) The litigation privilege “is relevant to the second step in the anti-SLAPP analysis in that it may present a substantive defense plaintiff must overcome to demonstrate a probability of prevailing.” (JSJ Limited Partnership v. Mehrban (2012) 205 Cal.App.4th 1512, 1522.)
--	---

	Here, Plaintiffs’ emotional distress claims arise out of BGN’s filing and prosecuting the UD Action and statements made during negotiations requiring joint dismissal of the Mold Action. These activities are undisputably protected by the litigation privilege. (See <i>Feldman v. 1100 Park Lane Assocs.</i> (2008) 160 Cal.App.4th 1467, 1480 [prosecution of unlawful detainer action “indisputably is a protected activity within the meaning of § 425.16”]; <i>Seltzer v. Barnes</i> (2010) 182 Cal. App.4th 953, 963-964 [settlement negotiations between opposing counsel are protected activity].) Plaintiffs contend the litigation privilege does not apply because their emotional distress claims arise from conduct, not communications. (See <i>Kimmel v. Goland</i> (1990) 51 Cal.3d 202, 211 [noting “distinction between injury allegedly arising from communicative acts, i.e., the attorney’s testimony, and injury resulting from noncommunicative conduct, i.e., the invasion of privacy resulting from the attorney’s eavesdropping”].) More specifically, Plaintiffs contend the following actions caused them emotional distress: Instructing an employee to refuse Plaintiffs’ rent payment; demanding rent at the full Unit L104 rate for months when Plaintiffs were displaced in a smaller unit, contradicted by BGN’s own written agreement; and rejecting a settlement offer exceeding Defendants’ own prior demand not because the money was insufficient but to maintain leverage over the unrelated Mold Action. Plaintiffs attempt to recast BGN’s litigation activity as “noncommunicative conduct” is unpersuasive. The gravamen of Plaintiffs’ claims remains BGN’s initiation and prosecution of the UD Action and related settlement discussions. Courts have consistently held that claims arising from litigation activities, including settlement communications, are barred by the litigation privilege. (<i>Seltzer, supra</i>, 182 Cal.App.4th 953; <i>Dowling, supra</i>, 85 Cal.App.4th 1404; <i>Home Ins. Co. v. Zurich Ins. Co.</i> (2002) 96 Cal.App.4th 17.) The litigation privilege therefore applies. Accordingly, Plaintiffs have failed to establish minimal merit of their emotional distress claims against BGN. Tentative Ruling: Defendant BGN Acquisitions La Habra Hills LP’s (“BGN”) Special Motion to Strike the Complaint under the Anti-SLAPP Statute is GRANTED. Defendant to give notice.
--	--

8	Herbas vs. Ean Holdings, LLC 2023-01360506	Motion to Dismiss Defendant Lauren A. Boisdore moves to dismiss plaintiff Alejandra Ortiz’s Complaint, for her failure to appear for her Court ordered deposition on January 16, 2026. “[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party.” (R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486, 496.) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. ‘Discovery sanctions “should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” ’ [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’ [Citation.]” (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992 (Doppes) (Footnote 5 omitted.)) Before issuing terminating sanctions, the court should usually grant lesser sanctions such as orders staying the action until the derelict party complies, or orders declaring matters as admitted or established if answers are not received by a specified date, often accompanied with costs and fees to the moving party. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 796.) Plaintiff violated the Court’s 12-30-25 Order compelling Plaintiff to appear for her deposition by no later than 1/30/26. (Canale Decl., ¶ 3, Ex. A; ROA 170.) Based on Plaintiff’s email stating Plaintiff was available on any day except 1/13/25, Defendant noticed Plaintiff’s deposition for 1/16/26. (Canale Decl., ¶¶ 4-5, Exs. B-C.) However,
---	--	--

		Plaintiff failed to appear for her deposition. (Canale Decl., ¶ 6, Ex. D.) The moving party must not only show that there was violation of the court's order, but that such violation was willful. (Doppes, supra, 174 Cal.App.4th at 992.) Although Defendant has shown Plaintiff failed to comply with the Court's 12-30-25 Order, there is no showing that the violation was willful. Further, there has been no incremental approach to sanctions and lesser sanctions of issue, evidentiary, and/or monetary sanctions are appropriate at this time. Tentative Ruling: Defendant's request for terminating sanctions is DENIED. <u>Sanctions:</u> Defendant requests sanctions in the amount of \$2,573.70 calculated as follows: \$300/hr. x. 6.4hrs.; plus \$60 filing fee and \$653.70 for a Certificate of Non-Appearance. The amount requested is excessive and is reduced to \$1,313.70 (\$300/hr. x 2hrs. + \$60 filing fee + \$653.70).] Tentative Ruling: Defendant's request for monetary sanctions is GRANTED in the reduced amount of \$1,313.70. Plaintiff is ORDERED to pay \$1,313.70 in monetary sanctions to Defendant within 20 days' notice of this ruling. Plaintiff is ORDERED to comply with the Court's 12-30-25 Order and appear for her deposition within 20 days' notice of this ruling. The Court warns Plaintiff that failure to comply with the Court's Order will result in more severe sanctions, which may include terminating sanctions. Plaintiff to give notice.
--	--	--

9	Huynh vs. Williams 2024-01436961	1. Motion for Reconsideration 2. Case Management Conference Parties have stipulated to continue the motion to 09/14/2026 at 1:45 pm in Department C15. The Case Management Conference is hereby also continued to 09/14/2026 at 1:45 pm in C15.
10	Jin and Yu, LLC vs. Pup Pup Hooray, LLC 2024-01418427	Motion for Judgment on the Pleadings Defendants Andy Atiyeh and Lannette Atiyeh move for Judgment on the Pleadings as to Plaintiff Jin and Yu, LLC's Complaint. Although Defendants Notice of Motion states that the Motion is supported by a concurrently filed Request for Judicial Notice, no Request for Judicial Notice was filed with the Court. (See ROA 178, 181, 184.) Defendants move for judgment on the pleadings pursuant to Code of Civil Procedure section 438. <u><i>Res Judicata and Collateral Estoppel</i></u> Defendants argue res judicata and collateral estoppel bar Plaintiffs claims. This court has ruled on Defendants' arguments based on collateral estoppel and res judicata twice before. First, on 2/3/25, in ruling on Defendants' Motion to Dismiss in which Defendant argued forum non conveniens, res judicata and collateral estoppel, the court treated the motion as a general demurrer and ruled that "Defendant has failed to show that either res judicata or collateral estoppel apply." (ROA 80.) Second, on 8/11/25, in ruling on Defendants' Demurrer in which Defendants again argued res judicata and collateral estoppel, the court once again rejected these arguments finding the court had already ruled on these arguments. (ROA 138.) This is the third time Defendants argue res judicata and collateral estoppel. Code of Civil Procedure section 438, subdivision (g) provides "The motion provided for in this section may be made even though either of the following conditions exist: (1) The moving

party has already demurred to the complaint or answer, as the case may be, on the same grounds as is the basis for the motion provided for in this section and the demurrer has been overruled, provided that there has been a material change in applicable case law or statute since the ruling on the demurrer.” Here, Defendants raise the same arguments based on res judicata and collateral estoppel without showing an intervening change in law. Therefore, Defendants have failed to show res judicata and collateral estoppel bar Plaintiffs claims.

Judicial Estoppel

Defendants also contend Judicial Estoppel bars Plaintiffs claims. Judicial estoppel “applies when ‘(1) the same party has taken two positions; (2) the positions were taken in judicial or quasi-judicial administrative proceedings; (3) the party was successful in asserting the first position (i.e., the tribunal adopted the position or accepted it as true); (4) the two positions are totally inconsistent; and (5) the first position was not taken as a result of ignorance, fraud, or mistake.’ [Citations.]” (Aguilar v. Lerner (2004) 32 Cal. 4th 974, 986–87.)

Defendants contend that Plaintiffs “obtained advantages in the UD case and in the related appeal by insisting that the Atiyehs were not parties and not liable.” (Motion, 4:12-13.) However, Defendants have not shown how the position is an inconsistent one that Plaintiffs prevailed upon. Therefore, Defendants have failed to show judicial estoppel bars Plaintiffs claims.

Plaintiffs’ statements to the Court of Appeal

Defendants contend that “[h]aving told the Court of Appeal that their damages ended in December 2020 and were limited to amount already awarded, Plaintiffs may not now seek damages for later periods, new categories of loss, or contract enforcement through 2024.” (Motion, 6:9-11.) Unlike the damages in that case, Plaintiffs damages, here, are based on Defendants’ unlawful holdover and vandalization of property after remand to the trial court. Therefore, this is not grounds for a motion for judgment on the pleadings.

		<u>Court's Prior Rulings</u> Defendants contend the Court's 2/3/25 Order ruling on Defendants' Motion to Dismiss shows irregular judicial encouragement of default. Further Defendants argue the Court's 10/20/25, ruling confirms preclusive material were presented to the court but the ruling did not address res judicata, collateral estoppel, or judicial estoppel. Defendants' disagreements with the Court's prior rulings are not a proper subject of a motion for judgment on the pleadings. Tentative Ruling: Defendants' Motion for Judgment on the Pleadings is DENIED. Moving Defendants to give notice.
11	Lawrence vs. The Cape Series at Aliso Viejo Maintenance Corporation 2023-01314623	Motion for Bifurcation <i>Continued to 07/13/2026 by stipulation.</i>
12	Lee vs. Hyundai Motor America 2025-01521906	1. Motion to Compel Arbitration 2. Case Management Conference Defendant Hyundai Motor America (HMA) moves to compel plaintiff Sang Jik Lee to arbitrate his claims and to stay the action pending the outcome of arbitration pursuant to the Federal Arbitration Act (9 U.S.C. § 1, et seq.) (FAA) and the California Arbitration Act (Code Civ. Proc., § 1281, et seq.) (CAA). <u>Procedural issues</u> Plaintiff has not submitted a signed proof of service showing the opposition was served on HMA. (See Code Civ. Proc. § 1005, subd. (b); Cal. Rules of Court, rule 3.1300, subd. (c).) As HMA filed a reply, HMA does not appear to have been prejudiced by Plaintiff's failure to do so. In the future, the Court may decline to consider documents unaccompanied by the required proof of service.

	<u><i>HMA's request for judicial notice</i></u> In support of its motion, HMA requests judicial notice of the following documents (ROA 22): (1) Plaintiff Sang Jik Lee's Complaint, filed on or about 10/27/25. (2) Hyundai's 2024 Owner's Handbook and Warranty Information. The Owner's Handbook and Warranty Information is attached as Exhibit E to the Declaration of Anthony Goel filed in support of HMA's motion. A court may take judicial notice of its own records. (Cal. Evid. Code § 452, subd. (d).) While "[a] court may take judicial notice of the existence of each document a court file, [it] can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments." (People v. Thacker (1985) 175 Cal.App.3d 594, 599 [citation omitted, italics in original].) The Court GRANTS HMA's request for judicial notice. <u><i>Legal standard</i></u> The FAA authorizes enforcement of arbitration agreement unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. § 2.) The court's role in considering a petition to compel arbitration under the FAA is limited to "determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue." (Chiron Corp. v. Ortho Diagnostic Systems Inc. (9th Cir. 2000) 207 F.3d 1126, 1130.) Under the CAA, a party to an arbitration agreement may move to compel arbitration if another party to the agreement refuses to arbitrate. (Code Civ. Proc., § 1281.2). <u><i>Subject arbitration agreement</i></u> HMA moves to compel arbitration pursuant to the (1) Owner's Handbook & Warranty Information (Warranty) and (2) Blue Link Connected Services Agreement (CSA). Both the Warranty and the CSA provide the agreement to arbitrate will be governed by the FAA. Specifically, the arbitration provision contained in the Warranty states: "This agreement evidences a
--	---

	transaction involving interstate commerce and shall be governed by the Federal Arbitration Act, 9 U.S.C. §§ 1-16.” (Goel Decl., ¶ 7, Ex. E at p. 14.) Similarly, the arbitration provision in the CSA states that “These Terms and Conditions evidences a transaction in interstate commerce, and thus the Federal Arbitration Act governs the interpretation and enforcement of this Arbitration Agreement.” (Rao Decl., ¶ 20, Ex. B at ¶ 23.14.1.) Plaintiff does not dispute the application of the FAA. <u><i>Existence of an agreement to arbitrate Plaintiff’s claim</i></u> When a party move to compel arbitration, it “must allege the existence of an agreement to arbitrate the controversy (§ 1281.2); facts necessary for a determination of its enforceability are proven by affidavits or declarations.” (Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218 [citation omitted].) The relevant provisions of the arbitration agreement must be set forth verbatim in the petition to compel or a copy of the agreement must be attached to the petition and incorporated by reference. (Ibid. [citing Cal. Rules of Court, rule 371 (now rule 3.1330)].) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.) If the opposing party disputes the agreement, it bears the burden of proof of producing evidence to challenge the authenticity of the agreement. (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) If the opposing party meets its burden, then “the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (Id. at pp. 165-66, citation omitted.) <u><i>Owner’s Handbook & Warranty Information</i></u> HMA attaches a copy of the Owner’s Handbook & Warranty Information (Warranty) to the motion. (Goel Decl., ¶ 7, Ex. E.) Section 4 of the Warranty states, in part:
--	---

	If you purchased or leased your Hyundai vehicle in the State of California, you and we, Hyundai Motor America, each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service related to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to false or misleading advertising, unfair competition, breach of contract or warranty, the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle's purchase price (excluding personal injury claims), but excluding claims brought under the Magnuson-Moss Warranty Act, shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law. If either you or we elect to resolve our dispute via arbitration (as opposed to in a court of law), such binding arbitration shall be administered by and through the American Arbitration Association (AAA) under its Consumer Arbitration Rules. (Goel Decl., ¶ 7, Ex. E at p. 12.) The Warranty further states: IF YOU PURCHASED OR LEASED YOUR VEHICLE IN CALIFORNIA, YOUR WARRANTY IS MADE SUBJECT TO THE TERMS OF THIS BINDING ARBITRATION PROVISION. BY USING THE VEHICLE, OR REQUESTING OR ACCEPTING BENEFITS UNDER THIS WARRANTY, INCLUDING HAVING ANY REPAIRS PERFORMED UNDER WARRANTY, YOU AGREE TO BE BOUND BY THESE TERMS. IF YOU DO NOT AGREE WITH THESE TERMS, PLEASE CONTACT US AT OPT-OUT@HMAUSA.COM WITHIN THIRTY (30) DAYS OF YOUR PURCHASE OR LEASE TO OPT-OUT OF THIS ARBITRATION PROVISION. (Goel Decl., ¶ 3, Ex. E at p. 14.) Plaintiff contends HMA fails to prove the existence of an enforceable arbitration clause as Plaintiff did not and cannot agree to arbitrate by unknowingly receiving Defendant's arbitration terms nor made any outward manifestation or expression that can
--	--

	reasonably be inferred to be assent to Defendant’s warranty booklet arbitration clause. (Opp. at 4:15-22.) HMA contends the 2024 Hyundai Owner’s Handbook and Warranty Information containing the Warranty was provided to Plaintiff as part of the glovebox materials provided to Plaintiff at the time of purchase and is also available online. (Goel Decl., ¶¶ 5-7.) Under California law, mutual assent of the parties is essential to the existence of a contract. (Herzog v. Superior Court (2024) 101 Cal.App.5th 1280, 1293.) “Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. The parties’ outward manifestations must show that the parties all agreed upon the same thing in the same sense. If there is no evidence establishing a manifestation of assent to the ‘same thing’ by both parties, then there is no mutual consent to contract and no contract formation.” (Id., at pp. 1293-1294 [cleaned up].) While the Warranty does not require a signature, it is not the presence or absence of a signature [on an agreement] which is dispositive; it is the presence or absence of evidence of an agreement to arbitrate which matters. Evidence confirming the existence of an agreement to arbitrate, despite an unsigned agreement, can be based, for example, on ‘conduct from which one could imply either ratification or implied acceptance of such a provision.’” (Serafin v. Balco Properties Ltd., LLC (2015) 235 Cal.App.4th 165, 176 [cleaned up, emphasis in original].) “[N]otice—actual, inquiry, or constructive—is the touchstone for assent to a contract.” (Stover v. Experian Holdings, Inc. (2020) 978 F.3d 1082, 1986 [citation omitted].) In the absence of actual notice, a manifestation of assent may be inferred actions indicating the parties’ assent to the same thing, which occurs only when the consumer is put on constructive notice of the contractual terms.” (B.D. v. Blizzard Entertainment, Inc. (2022) 76 Cal.App.5th 931, 944 [citations omitted].) “[W]hether the terms appear on a physical piece of paper or a computer screen, ‘California law is clear—‘an offeree, regardless of apparent manifestation of his consent, is not bound by
--	---

	inconspicuous contractual provisions of which he was unaware, contained in a document whose contractual nature is not obvious.” (Seller v. JustAnswer LLC (2021) 73 Cal.App.5th 444, 461 [citations omitted].) The Warranty states: “By using the vehicle, or requesting or accepting benefits under this warranty . . . you agree to be bound by these terms.” (Goel Decl., ¶ 7, Ex. E at p. 14.) Plaintiff’s use of the vehicle or his request for benefits under the Warranty does not demonstrate, however, that Plaintiff agreed to an arbitration agreement contained in an owner’s handbook in the glovebox of the vehicle (Goel Decl., ¶ 7) nor that he did so prior to his purchase of the vehicle. Nor has HMA demonstrated Plaintiff knew or had occasion to know the handbook also included an arbitration agreement that would automatically apply from his use of the vehicle. HMA further contends Plaintiff is equitably estopped from claiming the arbitration agreement is unenforceable as Plaintiff relies on the express warranty containing the arbitration provision. “When a plaintiff brings a claim which relies on contract terms against a defendant, the plaintiff may be equitably estopped from repudiating the arbitration clause contained in that agreement. There is no reason why this doctrine should not be equally applicable to a nonsignatory plaintiff. When that plaintiff is suing on a contract—on the basis that, even though the plaintiff was not a party to the contract, the plaintiff is nonetheless entitled to recover for its breach, the plaintiff should be equitably estopped from repudiating the contract’s arbitration clause.” (JSM Tuscany, LLC v. Superior Court (2011) 193 Cal.App.4th 1222, 1239–40 [citations omitted, emphasis in original]; see also Boucher v. Alliance Title Co., Inc. (2005) 127 Cal.App.4th 262, 269 [“A nonsignatory is estopped from refusing to comply with an arbitration clause ‘when it receives a ‘direct benefit’ from a contract containing an arbitration clause.’”]) At issue here, however, is not the enforcement of the arbitration provision against a nonsignatory based on an agreement between other parties. There is no dispute the warranty at issue was issued
--	---

	by HMA to Plaintiff or that HMA and Plaintiff are parties to that warranty. “[W]hile doubts concerning the scope of an arbitration clause should be resolved in favor of arbitration, the presumption does not apply to disputes concerning whether an agreement to arbitrate has been made.” (Johnson v. Walmart Inc. (9th Cir. 2023) 57 F.4th 677, 680–681 [citations omitted].) The Court finds an agreement to arbitrate Plaintiff’s claims does not exist based on the Warranty. <u>Connected Services Agreement</u> HMA attaches a copy of the Blue Link Connected Services Agreement (CSA) to its motion. (Rao Decl., ¶ 20, Ex. B.) The first paragraph of the CSA provides, in part: Connected Services. Your Hyundai or Genesis vehicle (“Vehicle” or “vehicle”) may be equipped with a Connected Services System (as defined in Section 1.1) which enables you to access and subscribe to certain connected services (“Hyundai Bluelink” for your Hyundai vehicle or “Genesis Connected Services” for your Genesis vehicle, collectively “Connected Services”). You are choosing to enroll in a Connected Services service plan (“Service Plan”). This Connected Service Agreement Terms and Conditions (this “Agreement” or these “Terms and Conditions”) govern your access to and use of the Connected Services, services we may provide that use or interact with the Connected Services System, and the activities and your obligations contemplated under this Agreement. (Rao Decl., ¶ 20, Ex. B at ¶ 1.1.) As such, the CSA is regarding Plaintiff’s “Connected Services,” which is provided using an embedded telematics device installed in the vehicle that receives GPS signals and communicates with the Connected Services Customer Care Center.” (Rao Decl., ¶ 20, Ex. B at ¶ 10.3.) The arbitration agreement in the CSA covers disputes which is defined as “any legal claim or controversy arising out of, or relating to, these Terms and Conditions or breach of the New Vehicle Limited Warranty, as well as any claim or controversy regarding the
--	--

		applicability, enforceability, or validity of any provision of these Terms and Conditions and the New Vehicle Limited Warranty. (Rao Decl., ¶ 20, Ex. B at ¶ 23.4.1.) While the arbitration agreement purports to cover any disputes between the parties regarding the New Vehicle Limited Warranty the scope of an arbitration clause “turns on whether the . . . claims are ‘rooted’ in the contractual relationship between the parties . . .” (Ahern v. Asset Management Consultants, Inc. (2022) 74 Cal.App.5th 675, 692 [citation omitted].) “[E]ven under a very broad arbitration provision, such as ‘any controversy or claim arising out of or relating to this agreement,’ claims ‘must have their roots in the relationship between the parties which was created by the contract’ before they can be deemed to fall within the scope of the arbitration provision.” (Rice v. Downs (2016) 248 Cal.App.4th 175, 188 [citations omitted].) The CSA governs the provision of the wireless technology and services received as part of the enrollment in a Bluelink Connected Services subscription. Plaintiff’s complaint alleges the vehicle contained defective components and that HMA installed remanufactured and/or reconditioned components that were not of the same quality as the original equipment manufacturer components. (Compl. ¶ 38.) Plaintiff further alleges Defendant installed components which it knew were defective and would not correct the mechanical issues exhibited in the vehicle. (Compl. ¶ 38.) As such, the Connected Services are not at issue in this action, and Plaintiff’s claims do not arise out of nor have their roots in the relationship created by the CSA. As such, the arbitration agreement in the CSA does not encompass Plaintiff’s claims. Tentative Ruling: The Court DENIES Defendant Hyundai Motor America’s motion to compel arbitration. Plaintiff to give notice.
13	Melchor vs. Kia America, Inc. 2025-01493559	1. Demurrer to Complaint 2. Case Management Conference The Demurrer was filed on 11/12/25 and Plaintiff’s opposition was filed on 5/19/26. As of 5/27/26, Defendant has not filed its reply

		brief, which was due on 5/22/26. Therefore, it is unclear whether Defendant is maintaining the motion. No later than 6/5/26, counsel for the parties are ordered to meet and confer via telephone or videoconference regarding whether this motion should remain on calendar. No later than 6/8/26, counsel for Defendant shall file and serve a status update, not to exceed two pages, describing the parties' meet and confer attempts and stating whether the motion should remain on calendar. The parties are encouraged to resolve this issue informally if possible. Tentative Ruling: Defendant Kia America, Inc.'s Demurrer to Plaintiff's Complaint is CONTINUED to 6/15/26 in this Department.
14	Plane Fetch LLC vs. Firm Foundation Aviation, LLC 2025-01457617	Motion for Continuance of Trial Defendant moves to continue trial in this action pursuant to California Rules of Court, rule 3.1332. "To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain." (Cal. Rules of Ct., rule 3.1332(a).) "Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance" (Cal. Rules of Ct., rule 3.1332(c).) "In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include: . . . [¶] (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and [¶] (11) Any other fact or circumstance relevant to the fair determination of the motion or application." (Cal. Rules of Ct., rule 3.1332(d).) The court finds good cause exists to continue trial, which is currently set for 8/03/26. A Motion to Consolidate is scheduled to be heard on 9/9/26, in department N18 to consolidate this action with Case No. 30 2025-01457567-CU-BC-NJC. If that motion is granted, this case will be transferred to department N18 and no further action will be required from this Court.

		Tentative Ruling: Defendant Firm Foundation Aviation, LLC dba Foundation Aviation’s Motion for Continuance of Trial is GRANTED.
15	The Mutual Group vs. Downie-Economy 2025-01476648	Demurrer to Amended Complaint Defendant Leigh Ann Downie-Economy’s Demurs to Plaintiff’s First Amended Complaint <u><i>Timeliness of opposition</i></u> Plaintiff’s opposition was untimely as it was filed on 4/1/26 and served 3/31/26, but due on 3/30/26 pursuant to Code of Civil Procedure section 1005, subdivision (b). The court has discretion to accept or reject late-filed or served papers. (See Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker (2016) 2 Cal.App.5th 252, 262 [citing to Cal. Rules of Court, rule 3.1300, subd. (d)]; Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 765 [citations omitted].) As Defendant has filed a reply addressing the merits of the opposition and made no objection based on timeliness. Therefore, the Court will consider the late-filed opposition. <u><i>First cause of action for fraud</i></u> “The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638 [citation omitted].) Fraud must be pleaded with specificity. (Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 843-844 [citation omitted]. This requires a plaintiff to plead facts showing “how, when, where, to whom, and by what means” any representations were made. (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1356, 1384 [citation omitted].) Plaintiff alleges:

	- From 4/1/23 and 4/1/24, Plaintiff, then known as GuideOne Insurance Company, issued a policy of insurance to Christ Lutheran Church (Insured) for coverage of, among other things, employee theft. (FAC ¶ 8.) - Defendant was the former daycare director of the Insured. (FAC ¶ 9.) - Between approximately 1/1/19 and 9/30/23, Defendant misappropriated \$89,204.04 from the Insured by fraudulently using a debit card issued and entrusted to Insured to purchase goods and services for her own benefit. (FAC ¶ 10.) - The Insured demanded repayment, but Defendant failed to repay such funds. (FAC ¶ 11.) - Plaintiff compensated its Insured in the amount of \$89,204.04 for its loss as required by the Policies' provisions covering employee theft. (FAC ¶ 12.) - Plaintiff has been damaged and is entitled in subrogation under the Policy to recover from Defendant \$89,204.04 paid to its Insured. (FAC ¶ 12.) Plaintiff fails to sufficiently allege a cause of action for fraud. Plaintiff does not allege with the requisite specificity what misrepresentations were made or what material information was intentionally concealed, nor the circumstances surrounding the misrepresentations/concealment. Moreover, Plaintiff does not allege Defendant's intent to defraud and whether or how Plaintiff justifiably relied on Defendant's misrepresentations and/or concealment to its detriment. Tentative Ruling: The Court SUSTAINS Defendant's demurrer to the first cause of action with 20 days leave to amend. <u><i>Second cause of action for money had and received</i></u> "A cause of action for money had and received is stated if it is alleged [that] the defendant 'is indebted to the plaintiff in a certain sum 'for money had and received by the defendant for the use of the plaintiff.]" (Avidor v. Sutterps Place, Inc. (2013) 212 Cal.App.4th 1439, 1454, [citations omitted].) "The claim is viable 'wherever one person has received money which belongs to another, and which in
--	--

		equity and good conscience should be paid over to the latter.” (Ibid. [citations omitted].) “As juries are instructed in CACI No. 370, the plaintiff must prove that the defendant received money ‘intended to be used for the benefit of [the plaintiff],’ that the money was not used for the plaintiff’s benefit, and that the defendant has not given the money to the plaintiff.” (Ibid.) Plaintiff alleges Defendant used a debit card issued and entrusted to the Insured to purchase goods and services for her own benefit rather than using it for the benefit of the Insured. (FAC ¶ 10.) Plaintiff further alleges the funds did not belong to Defendant and while the Insured demanded repayment, Defendant refused to repay the funds. (FAC ¶¶ 10, 11.) These allegations are sufficient at the pleading stage. Tentative Ruling: The Court OVERRULES Defendant’s demurrer to the second cause of action. Defendant to give notice.
16	Ingram vs. Silver 2020-01134343	1. ADR Review Hearing 2. Motion to Dismiss 3. Order to Show Cause re: Payment of Arbitration Fees Defendant moves to dismiss this action for failure to prosecute pursuant to Code of Civil Procedure sections 583.410 and 583.420, subdivision (a)(2)(B). Defendant alternatively moves to vacate this court’s 3/28/2022 order compelling arbitration for failure to prosecute pursuant to Code of Civil Procedure section 1287.97. Code of Civil Procedure section 583.410 provides: (a) The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case. (b) Dismissal shall be pursuant to the procedure and in accordance with the criteria prescribed by rules adopted by the Judicial Council.

		Code of Civil Procedure section 583.420, subdivision (a)(2)(B) provides: “The court may not dismiss an action pursuant to this article for delay in prosecution except after one of the following conditions has occurred: . . . [¶] (2) The action is not brought to trial within the following times: . . . [¶] (B) Two years after the action is commenced against the defendant if the Judicial Council by rule adopted pursuant to Section 583.410 so prescribes for the court because of the condition of the court calendar or for other reasons affecting the conduct of litigation or the administration of justice.” “In ruling on the motion, the court must consider all matters relevant to a proper determination of the motion, including: (1) The court's file in the case and the declarations and supporting data submitted by the parties and, where applicable, the availability of the moving party and other essential parties for service of process; (2) The diligence in seeking to effect service of process; (3) The extent to which the parties engaged in any settlement negotiations or discussions; (4) The diligence of the parties in pursuing discovery or other pretrial proceedings, including any extraordinary relief sought by either party; (5) The nature and complexity of the case; (6) The law applicable to the case, including the pendency of other litigation under a common set of facts or determinative of the legal or factual issues in the case; (7) The nature of any extensions of time or other delay attributable to either party; (8) The condition of the court's calendar and the availability of an earlier trial date if the matter was ready for trial; (9) Whether the interests of justice are best served by dismissal or trial of the case; and (10) Any other fact or circumstance relevant to a fair determination of the issue.” (Cal. Rules of Ct., rule 3.1342(e).)
--	--	---

		“The court must be guided by the policies set forth in Code of Civil Procedure section 583.130.” (Cal. Rules of Ct., rule 3.1342(e).) Code of Civil Procedure section 583.130 provides: It is the policy of the state that a plaintiff shall proceed with reasonable diligence in the prosecution of an action but that all parties shall cooperate in bringing the action to trial or other disposition. Except as otherwise provided by statute or by rule of court adopted pursuant to statute, the policy favoring the right of parties to make stipulations in their own interests and the policy favoring trial or other disposition of an action on the merits are generally to be preferred over the policy that requires dismissal for failure to proceed with reasonable diligence in the prosecution of an action in construing the provisions of this chapter. However, where a plaintiff demonstrates inexcusable delay—such as failing to pay required fees or initiate proceedings in arbitration—the balance weighs heavily in favor of dismissal (Howard v. Thrifty Drug & Discount Stores (1995) 10 Cal.4th 424, 442-444 [emphasizing that prolonged inaction prejudices defendants through evidentiary deterioration and increased costs].) Here, Plaintiffs commenced this action against Defendant on 2/25/2020. On 3/28/2022, the court granted Plaintiffs’ motion to compel arbitration, which was filed on 11/16/21. (Schuler Decl., ¶ 3, Ex. A; ROA 132.) Defendant subsequently filed a Motion for Summary Judgment in arbitration. (Schuler Decl., ¶ 4, Ex. B.) On 12/11/24 and 2/26/25, Judicate West issued billing statements for Invoice No. 646695 indicating \$9,320.00 was owed by each side as a retainer for the arbitrator. (Schuler Decl., ¶ 5, Ex. C.) On 9/11/25, Defendant prepared a check for his share and notified opposing counsel of readiness to pay upon confirmation of Plaintiffs’ payment. (Schuler Decl., ¶ 6, Ex. D.) Pursuant to the 3/20/25 Arbitration Readiness Conference Order, the Arbitrator refused to proceed until both parties paid their fees. (Schuler Decl., ¶7, Ex. E.) On 9/22/25, at this court’s ADR Review Hearing, Defendant advised the court of Defendant’s tendered fees and check; Plaintiffs requested continuance. The court issued an OSC re: Payment of Arbitration Fees for 1/26/26. (Schuler Decl., ¶ 9, Ex. F.) On
--	--	--

		10/30/25, Defendant advised Judicate West of its pending Motion for Summary Judgment, the status of arbitration fee payment, and Defendant’s willingness to proceed with arbitration (Schuler Decl., ¶ 9, Ex. G.) Plaintiffs have failed to pay their share of the arbitration fees. (Schuler Decl., ¶ 8.) At the 1/26/26 OSC, Plaintiffs confirmed to the court that they had not paid the arbitration fees. Plaintiffs also informed the court of their counsel’s pending motion to be relieved. The court continued the OSC and the instant motion to 6/1/26, and advanced the motion to be relieved as counsel to 4/27/26. (ROA 262.) The court subsequently granted the motion to be relieved as counsel. (ROA 265.) The Plaintiffs’ counsel filed a Proof of Service showing counsel served Plaintiff with a notice of ruling re motion to relieved as counsel on 4/30/26. (ROA 269.) The evidence establishes Plaintiffs' failure to pay arbitration fees and advance the matter for over five years since filing and more than three years since the order compelling arbitration constitutes inexcusable delay. This delay has resulted in prejudice to Defendant through faded evidence, prolonged uncertainty, and unnecessary expenditure of resources. Plaintiffs have failed to oppose the motion. “The failure of the opposing party to serve and file a written opposition may be construed by the court as an admission that the motion is meritorious, and the court may grant the motion without a hearing on the merits.” (Cal. Rules of Ct., rule 3.1342(b).) Tentative Ruling: Defendant Gerald N. Silver’s unopposed Motion to Dismiss is GRANTED. Defendant to give notice.
--	--	--

--	--	--